

Jai Karan Singh v. State of U.P.

Allahabad High Court · Division Bench · 21 April 2016 · WRIT - C No. 17748 of 2016 · **Writ disposed; relegated to cl. 6.5(b); recovery stayed; restore on deposit.**

HEADNOTE

A writ challenging recovery of electricity dues on a disputed bill was disposed of by relegating the consumer to a complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005, staying recovery for a short period, and directing restoration of supply on deposit.

FACTUAL SUMMARY

Jai Karan Singh filed Writ-C No. 17748 of 2016 in the Allahabad High Court against the State of U.P. and two others, challenging recovery proceedings initiated by the respondent electricity corporation for outstanding dues. He disputed the correctness of the bill on which the recovery was founded. Counsel for the petitioner and for respondent nos. 2 and 3 were heard. The bill challenge raised disputed questions of fact.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint

HOLDING

A consumer who disputes the accuracy of an electricity bill has a complaint remedy under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. Finding disputed questions of fact and that statutory remedy, the Court disposed of the writ with liberty to complain under clause 6.5(b) within one week, directed the competent authority to decide the complaint within two weeks, stayed recovery for four weeks or until disposal of the complaint whichever was earlier, and directed that supply be restored forthwith after the petitioner deposits the amount. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND THE RECOVERY FOUNDED ON IT

Left to a clause 6.5(b) complaint as involving disputed questions of fact ¶ 5